



The Pro Bono Paradox

What You Don't Know May Be Hurting Your Client

By Ann Fenton

The expectation that attorneys will provide legal services pro bono publico—for the good of the public—is widely known and largely embraced by the legal community. The ABA strongly encourages the practice through the Model Rules of Professional Conduct, and many law firms do the same through in-firm pro bono programs. But many defense attorneys confront a troublesome gap between a ready willingness to contribute pro bono hours and an ability to provide the types of services most needed by their communities. Even simple family law cases—an uncontested divorce for example—can raise tricky questions of immigration status and the distribution of marital property. And a corporate attorney may be a wiz at contract interpretation but might not have the first clue about how to interview a potential client seeking a protective order from an abusive partner. Yet the duty to provide competent representation applies equally to corporate and pro bono clients alike, and attorneys should choose their pro bono cases carefully to ensure that they help, rather than hurt, clients.

By the Book

Model Rules of Professional Conduct Rule 1.1 requires that a lawyer “shall provide competent representation to a client.” The comment to that rule suggests that a lawyer should consider several factors when determining if she or he may represent a client, including the lawyer’s “training and experience in the field in question.” Model Rules of Prof’l Conduct R. 1.1 cmt. 1. It is with that bedrock principle in mind that an attorney must view Model Rule 6.1, which states that all lawyers have a “professional responsibility” to provide free legal services to those who cannot afford to pay. Further, a lawyer “should aspire” to provide at least 50 hours of pro bono legal services per year and to provide a “substantial majority” of those hours either directly or indirectly to “persons of limited means.” See Model Rules of Prof’l Conduct R. 6.1(a). The upshot? Lawyers *should* provide pro bono services, and *must* do so competently.

Pro Bono Paradox

Fulfilling the ethical duties of both Model Rules 1.1 and 1.6 may not be as straightforward as it first appears. Even choosing an appropriate pro bono case from a list of referrals can—and should—raise questions. For instance, does a lawyer have the ability to adequately represent an intended client? Can he or she adequately interview a potential pro bono client? Think of the first year associate or an attorney who may not have expertise in the relevant area of law. Unlike corporate clients, most pro bono clients probably are unfamiliar with the legal process and may not even fully understand their own cases. And a lawyer who fails to ask the right questions before undertaking representation may quickly discover that a “simple” family law case involves “poverty issues, abuse issues, special education needs, mental health issues, and landlord/tenant issues.” Laurie Barron *et al.*, *Don’t Do It Alone: A Community-Based, Collaborative Approach to Pro Bono*, 23 Geo. J. Legal Ethics 323, 324 (2010). As one legal aid attorney put it, you wouldn’t expect a divorce lawyer to tackle an insurance defense case—and vice versa. Without adequate experience or relevant expertise, if an attorney lacks cultural competence it only compounds the problem and “can have negative consequences for the very groups that firms are attempting to serve.” Scott L. Cummings & Deborah L. Rhode, *Managing Pro Bono: Doing Well by Doing Better*, 78 Fordham L. Rev. 2357, 2428 (2010).

Unfortunately, even if an attorney diligently chooses an appropriate pro bono client that doesn’t guarantee that other issues won’t crop up in the course of the representation. Scant support for those who accept pro bono referrals can affect quality, and “working alone on a complicated pro bono case can be isolating, frustrating, and overwhelming.” Barron, *supra*. Yet many attorneys representing pro bono clients do not have access to more experienced attorneys in the relevant area of law to assist them if (when) a tricky legal question arises. Moreover, relying on referring organizations for substantive support may not always be a viable option because they generally lack the staff or funding to train associates. So “if firms rely on understaffed nonprofit organizations to shoulder much of the training burden, the

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resource tradeoffs could affect the provision of important services.” See Rhode, *supra*, at 2443.

Finding a Solution

Although when an attorney does decide to represent a pro bono client who needs representation outside of that attorney’s area

of expertise may raise competency issues, the problems are far from insurmountable. Many defense attorneys, myself included, are dedicated to fulfilling their ethical duties by providing legal services pro bono publico despite the potential pitfalls. Simply recognizing that our skill sets may not match the needs of potential pro bono clients is an important first step. Under-

standing what we *don’t* know is critical to figuring out how to use what we *do* know to our clients’ advantage. Additionally, setting aside adequate time for self-education in relevant areas of law and ensuring that we have proper support systems in place will go a long way to serving our pro bono clients with all the expertise, skills and advocacy that they deserve. 